CONSTITUTION OF THE CONFEDERATION OF CIRCLES

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Nature: supreme founding text of the Confederation of Circles

Art. 0 — Purposes

0.1. The Confederation of Circles arises from the awareness that unlimited accumulation, exclusive ownership of vital resources and indefinite growth on a finite planet have contributed to ecological, social and existential crises that are no longer sustainable. The Confederation pursues the survival, the dignity and the possibility of flourishing of every form of life through a radical change in the model of common organisation.

0.2. The Confederation is not a nation-state and is not founded on political borders or on traditional ethnic-cultural identities. It has a global and planetary vocation and is open to the whole of humanity, without distinctions of origin or geographical provenance. It promotes cooperation among communities and the recomposition of the relationship between human beings and the biosphere.

0.3. The Confederation is founded on sufficiency, common custody of resources, community contribution, access according to real needs, open technology and restorative justice.

0.4. In the event of interpretative doubt or of conflict between a provision of the Constitution and its purposes, the purposes of this Article shall prevail, except where they conflict with the Inviolable Core referred to in Article 37.4.

TITLE I — FUNDAMENTAL PRINCIPLES

Art. 1 — Legal personality and inviolable rights

1.1. Every human being is a subject of law from the moment of birth. Every sentient being is entitled to protection.

1.2. Every human being who assumes the status of confederated member has the right to:

a) a dwelling for individual or family use, inviolable within the limits established by the Constitution;

b) material sustenance, comprising food, drinking water and basic energy;

c) health care, education and connectivity;

d) a personal AI Node.

1.3. The rights in paragraph 1.2 are guaranteed unconditionally to every member, except as provided in Articles 1.3-bis, 4.8 and 7.3-bis. Article 4.9 applies to those who are not members. Drinking water, life-saving emergency care and the protection of minors remain guaranteed in every case to anyone who is in the territory held in custody by a Circle.

1.3-bis. For offences of Grade 5 or 6 that seriously harm physical or sexual integrity, the Code of Restorative Justice may provide, in the event of recidivism established by a final judgment of the Guarantee Tribunal, for loss of member status and the application of High-Security Containment or of Definitive Removal from the Circles concerned. Containment has no predetermined duration, but it is not perpetual: it lasts for as long as a concrete and present danger persists, as established by periodic review. Definitive Removal does not deprive the person of the vital guarantees of Article 30.4 nor of the possibility of living in another Circle willing to receive them or by means of an Autonomous Coexistence Pact. The relevant acts include, in particular, sexual violence, sexual abuse of minors, intentional homicide and torture. The death penalty, torture and any inhuman or degrading treatment remain prohibited at all times. Preconditions, guarantees and procedures are

governed exclusively by the Code of Restorative Justice, in compliance with the non-derogable minimum guarantees provided for by the Constitution. The cases and measures provided for in this paragraph may not be extended.

Art. 2 — Material foundation and co-responsibility

2.1. Labour is not a commodity: it is a contribution to common life.

2.2. The rights referred to in Article 1 are guaranteed to the individual in accordance with Article 1.3: they do not depend on the hours performed or on the CdR, and refusal of the CBO affects them only in the case of Article 7.3-bis. Their material guarantee depends on collective contribution, structured in the following institutions governed by Title III:

a) the Mandatory Base Contribution (CBO), as a share of socially necessary labour;

b) the Recognition Contribution (CdR), as recognition of the value generated.

2.3. The Confederation is founded on material interdependence: production is organised collectively according to the capacities available and enjoyment is guaranteed in relation to real needs. If a community interrupts production, the material availability of goods or services may be reduced for everyone; the inviolable rights remain legally intact and the vital guarantees shall be preserved. The CBO is not the price of individual goods or services: no one obtains them in exchange for the hours performed and enjoyment remains commensurate with real needs. The CBO is the minimum contribution that every able adult person owes to the Community as a condition of membership, and it is an expression of collective co-responsibility. Persistent and unjustified refusal of the CBO may entail the cessation of member status only in the case and with the guarantees of Article 7.3-bis. Illness, disability, age, pregnancy, conscientious objection and the other impediments, exemptions and justifications recognised by the Constitution and by the Codes never constitute refusal.

Art. 3 — Regime of goods

3.1. The following are inalienable and non-tradable Commons, entrusted to the custody of the Circles: land, water, air, energy sources, the means of industrial production, network infrastructure, knowledge, the natural genetic code, the Community and Circle AI Nodes, the Storehouses and every other good classified as common by the Constitution or by the Federative Codes.

3.2. A right of personal, family or community use is recognised over the Commons. Any act of sale, lease or mortgage of a Common Good is void.

3.3. Personal-Use Goods are the main dwelling, for as long as the ownership of use of it lasts pursuant to Article 10.2, personal effects and the individual work tools guaranteed to each person. They are governed in accordance with Article 10.

3.4. Consumption Goods are those managed through the Common Storehouses and resupplied by federated logistics, with the support of the Community and Circle AIs, on the basis of real requirements. Withdrawal takes place without monetary mediation, according to need, availability and carrying capacity, with the advisory support of the Community AI provided for in Article 10.5.

3.5. Money is abolished. The CdR, also called by custom the Gratitude Credit, is a personal instrument of recognition and allows limited access to non-essential goods and services. It is not currency, it is not unlimitedly accumulable, transferable or inheritable and it may not be used to purchase or to condition the rights of Article 1.2. The CdR is governed by Title III, Article 8.

3.5-bis. For as long as parties external to the Confederation exist, and solely in relations with them, the Circles may hold and use external means of payment exclusively through Common Funds, in accordance with the Code of External Relations and the Code of Transition. Such means do not circulate among members, do not give access to the Common Storehouses and may not be accumulated beyond what is

necessary for the purposes resolved upon.

3.5-ter. During the same period, the income and assets that a person holds outside the Confederation remain at that person’s disposal, under the conditions of the Code of External Relations. They confer no advantage in access to the Commons, to the Storehouses, to the CdR or to decisions and may not be used among members to purchase goods, labour or consent. Those who receive them shall contribute in proportion to the common external expenses. When the Confederation comprises the whole of humanity, external income and means of payment no longer exist and the Common Funds are closed.

3.6. On the death of the person, personal effects, clothing and individual work tools are assigned as a priority to the Circle 0 to which the person belonged, as defined in Article 5.1, letter a), or to the persons designated by the person before death, within the limits established by the Code of Contribution and Storehouses.

3.7. The dwelling for individual use referred to in Article 1.2, letter a), is not inheritable. It returns to the availability of the Storehouse and of the housing planning of Circle 1 to be assigned according to real needs, safeguarding the housing continuity of cohabitants belonging to the same Circle 0.

3.8. Work tools and highly specialised material goods that are not reused within Circle 0 are conferred on the Common Storehouse of Circle 1 for redistribution according to need.

3.9. The digital memories and the artistic or intellectual works of the deceased person, separated from the personal AI Node to be reset pursuant to Article 21.5, are kept in the Open Archive of the Community. They enter the public domain unless otherwise expressly provided during the person’s lifetime and without prejudice to the rights of third parties.

3.10. Every generation has the non-derogable duty to keep in custody natural resources, biodiversity and ecological stability for the benefit of future generations. Any activity that compromises the habitability of the planet is prohibited.

TITLE II — INSTITUTIONAL ARCHITECTURE

Art. 4 — System of federated Circles

4.1. The organisation of the Confederation is federated, acephalous and founded on horizontal subsidiarity. The sovereign unit is the Base Community.

4.2. No Circle exercises hierarchical power over a lower Circle. The higher Circles have exclusively the competences attributed by the Constitution, including coordination, interoperability, guarantee, preparatory inquiry and the management of supra-local functions. They do not have a general power of command over the Base Community.

4.3. Authority is functional and temporary. Coordination offices are conferred by sortition among suitable volunteers, are of limited duration and are not consecutively renewable.

4.4. The professional and permanent exercise of politics is prohibited. In particular:

a) no one may perform functions of coordination, spokesperson, assembly facilitation, guarantee or external representation for more than ninety consecutive days or more than one hundred and eighty days in total within a period of three hundred and sixty-five days;

b) immediate reassignment of the same function or of a similar function in the same Circle is not permitted. At least twelve months of exclusive activity in ordinary CBO shall elapse between two terms of office;

c) parties, stable factions, permanent lists and structures that continuously accumulate delegations, resources or consent are prohibited;

d) personal candidacy is prohibited. Offices are conferred by sortition among suitable volunteers who have fulfilled the CBO and completed the specific training. Every volunteer may refuse the office;

e) the office gives no right to CdR, privileges or preferential access to the Commons; the time necessary to perform it is counted in the CBO;

f) violation of this Article constitutes a Grade 4 offence of usurpation of common power.

4.4-bis. The technical functions of the Councils referred to in Article 6.5 are not coordination functions within the meaning of paragraph 4.4, letters a) and b), and follow the duration and rotation established by Article 6.5. Letters c), d), e) and f) of paragraph 4.4 remain applicable.

4.5. An external community that subscribes to the fundamental rules of the Confederation, namely Titles I, IV, V and VII, Articles 19.1, 21, 30.1, 30.2 and 36.1 and the Inviolable Core of Article 37.4, may apply to join the Confederation in one of the following two ways: as an associated Community, which keeps its own internal order, or by also adopting the Federative Codes. The other rules of the Constitution and of the Codes that govern internal management, such as the CBO, the CdR, the Storehouses, internal bodies and assemblies and justice for internal conflicts, are tools available to the Communities: the associated Community is not required to adopt them if it respects the fundamental rules and guarantees, at the boundary with the higher Circles, the equivalence governed by the External Relations Code. For the associated Community, the bodies of the Base Community named by the fundamental rules may be replaced by bodies of its internal order that perform their functions with the same guarantees; failing these, the function is performed by the corresponding body of the Intermediate Circle or by a shared body, in accordance with the External Relations Code. The equivalence comprises in all cases the rights of every person, with appeal to the common guarantee bodies, the inventory and the Balance in the common format, a share of work for the common functions counted for the Community as a whole, persons on the sortition lists of the common bodies, the individual and secret vote of every member in the General Assemblies, the common standards of the goods exchanged and the transit and hospitality of the members of the other Communities. The associated Community may accommodate on a stable basis, in accordance with its own internal order, persons who live there without joining: they are its responsibility, without drawing from the Common Storehouses or from the common tools of the Confederation, save for the guarantees of Articles 1.3 and 15.2, they do not vote in the General Assemblies, are not entered on the sortition lists of the common bodies, retain the guarantees of Article 1.3 and are counted in the share of work for the common functions; the limit of Article 4.9, letter b), and Article 4.9-ter do not apply to them, under the conditions laid down by the External Relations Code. The associated Community may adopt individual tools of the Codes at any time and, when it uses a common tool, follows its rules. The Intermediate Circle of reference verifies only the technological and logistical interoperability protocols and, for the associated Community, the equivalence at the boundary and compliance with the fundamental rules. The verification may not introduce political or ideological assessments beyond the constitutional requirements and may not require changes to the internal life of the community other than those necessary for compliance with the fundamental rules, which are agreed in a Bridging Plan with defined time limits.

4.6. Every Circle 1 retains the right to withdraw from the Confederation by a resolution approved by a majority of three quarters of those entitled to vote. This provision constitutes a special rule with respect to Article 35.1.

4.7. Withdrawal entails:

a) the termination of integration into the federated Network and the Common Storehouses in accordance with agreed technical arrangements;

b) the return of, or agreed compensation for, the infrastructural and energy goods belonging to Circles 2 or 3 and located in the territory of the withdrawing community;

c) the maintenance of the guarantees of transit and of the rights referred to in Article 1.2 for persons resident in the withdrawing community who choose to retain the status of confederated members.

4.8. Every person may declare at any time that they no longer belong to the Confederation. The declaration results in the cessation of member status and of political rights, of ordinary access to the Common Storehouses, to the CdR, to the Community AI Nodes, to the confederated services and to the benefits reserved for members, without prejudice to the regime of Articles 4.9 and 4.9-bis. The person retains the

Personal-Use Goods lawfully held and may apply at any time to be readmitted. Readmission may not be refused, unless the preconditions of Article 1.3-bis are met.

4.9. The non-confederated person has the right:

a) to transit through the territory held in custody by a Circle for a maximum of seventy-two hours, with a guarantee of drinking water and life-saving emergency care, without ordinary access to the Storehouse;

b) to temporary hospitality pursuant to Article 12, for a non-extendable maximum of fourteen days, with CBO in mobility where compatible with the person’s condition, except as provided in Article 4.5 for associated Communities;

c) to stable residence by means of an Autonomous Coexistence Pact with the Circle 1 in whose territory they reside or with another available Circle 1. The Pact is a right: it may not be refused to anyone who accepts its conditions. If the documented carrying capacity of the territory does not allow it, Circle 2 shall identify another placement without delay.

4.9-bis. By the Autonomous Coexistence Pact, a portion of land and, where available, a dwelling sufficient for self-sufficiency are entrusted to the person or to their nucleus, in custody of use, within the limits of carrying capacity. The portion remains an inalienable Common Good pursuant to Article 3 and returns to the custody of the Circle at the end of the use. The Pact establishes compliance with the ecological constraints, with the status of animals and with the disarmament referred to in Article 16, access to water and to emergency care, the absence of ordinary withdrawals from the Storehouses and the arrangements for any exchange of real surpluses, without profit. For a person who has ceased to be a member pursuant to Article 7.3-bis, until readmitted, the portion is entrusted with access to the necessary water, without a dwelling, even if one is available, and without tools or other goods of the Community; the person may build a shelter on it by their own efforts. The rights of minors referred to in Article 26, including access to care and to learning, remain intact.

4.9-ter. Except as provided in Article 4.5 for associated Communities and in Article 26.5 for minors, anyone who resides stably without a Pact and without contribution shall be offered the Autonomous Coexistence Pact. Only if the offer is persistently refused may the Guarantee Tribunal order a non-violent procedure of removal from the common settlement, with the assignment ex officio of a portion pursuant to paragraph 4.9-bis. The non-confederated person may not invoke Article 1.2 in order to obtain continuous access to the Storehouses.

Art. 5 — Federative architecture

5.1. The Confederation is structured in concentric and subsidiary Circles:

a) **Circle 0 — Care Nucleus.** It is the original unit of care of every person and is composed of one to fifteen persons, in individual, family, elective or cohabitation form. It performs daily functions of mutual care and primary hospitality. It is entitled to a Storehouse account and to a personal AI Node for each of its members. Each member individually exercises the vote referred to in Article 36.1, without delegation. Circle 0 identifies a spokesperson by rotation solely for practical coordination and communication, without delegation of vote or representative powers. Circle 0 is inviolable: no one may enter it, record its dynamics, dissolve it or condition its composition, except for interventions strictly necessary for the protection of inviolable rights in accordance with Title VIII and, by the Civic Protection Corps alone, interventions strictly necessary to bring to an end ongoing ill-treatment that endangers the life of an animal or causes it severe suffering, pursuant to Articles 1.1 and 13, with the validation of the Guarantee Tribunal provided for by the Code of Safety. Every person belongs to one Circle 0 only. The resolutions of the Base Community assess their own impact on Circle 0. The part of a resolution that infringes its inviolability is void;

b) **Circle 1 — Base Community.** It is the sovereign unit and manages the CBO, the Storehouse, local cycles, justice of Grade 1 and 2, health and basic education. It has a Community AI that is exclusively advisory. Its size is such as to allow the direct deliberation of all its members: as a rule not fewer than thirty and not more than five hundred persons. Above that threshold the Community assesses, by a Dossier pursuant to Article

33, its own division into several Communities;

c) **Circle 2 — Intermediate Circle.** It brings together contiguous Base Communities, as a rule at least three, and constitutes their Basin. It coordinates supra-community logistics, local railway, energy balancing, the district hospital, the treatment of complex waste, mediation between Communities and the Guarantee Tribunal referred to in Article 31.3, letter c). Its functions are not hierarchical;

d) **Circle 3 — Extended Circle or Bioregion.** It coordinates continental railway backbones, large-scale energy balancing and centres of high specialisation, as federated services without a general power of command;

e) **Circle 4 — Global Circle.** It comprises the whole of humanity and constitutes a protocol of interoperability, translation and open standards among the infrastructures and AIs of the Extended Circles. It is not a government, an executive or a central authority and it has no central AI or autonomous powers of command.

5.2. Every person has the right to leave a Base Community without losing the Personal-Use Goods lawfully held. They are also entitled to thirty days of bridge CBO and to a Bridge House allocation for relocation, in accordance with the Code of Contribution and Storehouses.

Art. 6 — Competence Circles

6.1. The Competence Circles are federated, horizontal and non-hierarchical functional networks, distinct from the territorial Circles. They do not exercise powers of command and carry out technical and scientific preparatory inquiries in accordance with the protocol of Article 33.

6.2. The following original Competence Circles are recognised:

a) Agroecology and Soil;

b) Hydrology and the Water Cycle;

c) Biodiversity and Seeds;

d) Energy and Energy Systems;

e) Habitat and Construction;

f) Tools and Manufacturing;

g) Medicine and Health;

h) Care and Interdependence;

i) Childhood and Education;

j) Animal Care;

k) Code and Artificial Intelligence;

l) Learning and Transmission of Knowledge;

m) Mediation and Restorative Justice;

n) Logistics and Storehouses;

o) Quality and Validation;

p) Safety of Persons and Infrastructure.

Further Competence Circles may be established on the basis of a Dossier pursuant to Article 33.

6.3. Access to the Competence Circles is free and based on the demonstration of practical competences and on a verifiable portfolio of works carried out, irrespective of the possession of educational qualifications. Every member devotes at least twenty per cent of their CBO to the transmission of competences to apprentices and Communities.

6.4. A Competence Circle may not refuse a person solely for lack of an educational qualification. After three refusals of access to a competence pathway, a mandatory revision is initiated and entrusted to two unconnected Communities drawn by lot, in accordance with the Code of Learning.

6.5. In every Circle 1 the Competence Circles operate through technical Councils governed by the Codes. Where the Community does not have a sufficient number of suitable persons, several Councils may be merged or constituted in shared form in Circle 2. The members are drawn by lot from among the suitable and available persons, remain in office for one year with staggered renewal and may not be drawn by lot again for the same Council until twelve months after the end of the term of office. Every person drawn by lot may refuse. The Assembly may remove the members at any time. In Communities with fewer than one hundred and fifty persons entitled to vote the Councils are combined into not more than three Area Councils, in accordance with the Code of Deliberation. The time devoted to administration shall not exceed one tenth of the total CBO of the Community.

6.6. The Councils do not exercise powers of command. They adopt technical acts in execution of decisions, specifications and sheets already approved, formulate proposals and opinions and, solely in the cases provided for by the Codes for the protection of health, safety, data sovereignty and ecological limits, issue binding negative opinions. Ecological limits are the carrying capacity of ecosystems and the prohibition of irreversible harm provided for by Articles 14.2 and 14.6, measured with the indicators and thresholds of the Agroecological and Food Code, of the Habitat and Territory Code and of the Biodiversity Code. The binding negative opinion prevents the adoption of the decision until its cause has been removed, is reasoned and may be challenged before the guarantee bodies; it does not confer on the Council the power to decide in place of the Assembly.

TITLE III — ECONOMIC SYSTEM, EXCHANGE AND CONTRIBUTION

Art. 7 — Mandatory Base Contribution

7.1. Every able adult person contributes, according to capacity and inclination, to the satisfaction of collective needs through the CBO. The total requirement is determined by the Circles in relation to real needs. The CBO is not the price of the goods and services that guarantee the inviolable rights; it contributes to making their material guarantee possible and is the contribution owed as a condition of membership, pursuant to Article 2.3. Refusal of the CBO affects member status only in the case and with the guarantees of paragraph 7.3-bis.

7.2. Every adult person devotes a limited time, by rotation, to essential tasks identified by the Community of Circle 1. The CBO includes, by way of example:

a) basic food production;

b) management of the water, energy and waste cycles;

c) maintenance of the settlement, of the infrastructure and of the tools;

d) logistics of the Common Storehouses;

e) basic care of minors and of elderly persons who are not self-sufficient;

f) care of the animal sanctuaries and environmental repair;

g) facilitation of learning and of community health;

h) maintenance of the Network and of the local federated AIs;

i) functions, conferred by sortition, of coordination, facilitation, guarantee, civic protection and technical council, as well as the documentation that the Codes make mandatory.

Cultural, artistic, spiritual, recreational and affective activities, free research and contemplation are excluded from the CBO.

7.3. The systematic and unjustified refusal of the CBO by an able adult person is addressed progressively by the Clarification Assembly of Circle 1. Before any measure, the readjustment of tasks and mediation shall be considered, and the person shall be informed of the right to the Autonomous Coexistence Pact referred to in Article 4.9, letter c). If these are unsuccessful, the CdR and access to non-essential resources may be suspended, without prejudice to the rights of Article 1.2. Persistence in the refusal for more than sixty days, in the absence of a valid conscientious objection, a recognised impediment or another justification provided for by the Code of Restorative Justice, constitutes a Grade 3 offence pursuant to Article 30.2.

7.3-bis. In implementation of Article 2.3, if, once the Transformation Plan ordered for the Grade 3 offence provided for by paragraph 7.3 has been concluded, including any renewal, the able adult person continues to refuse the CBO without justification, the Guarantee Tribunal may declare, with the guarantees of Article 31.5 and of the Codes, the cessation of their member status. Conscientious objection under Article 7.4, illness, disability, age, pregnancy and the other impediments, exemptions and justifications recognised by the Codes never constitute unjustified refusal. The cessation is the exception provided for this case by Article 1.3 and produces the effects of Article 4.8; it is not the loss of member status of Article 1.3-bis and does not entail any of the measures of Article 30.3. A portion of land from the share reserved for the Pact, with access to the necessary water, without a dwelling and without tools or other goods of the Community, is assigned to the person in custody of use, with the Autonomous Coexistence Pact in the form provided for this case by Article 4.9-bis; the person retains the Personal-Use Goods, drinking water, life-saving emergency care and the protection of minors guaranteed to anyone by the last sentence of Article 1.3, and the other rights of Article 4.9 within the limits of Article 4.9-bis. The person may apply at any time for readmission, by resuming the CBO: readmission may not be refused on account of the past refusal. Minor children retain member status and all rights; the Guarantee Tribunal decides in their interest where and with whom they live, in accordance with the Code of Care. Preconditions and procedure are governed by the Code of Restorative Justice and may not be extended to other cases, pursuant to Article 37.4, letter a).

7.4. Individual conscientious objection is guaranteed in respect of tasks of the CBO or of the CTC that are incompatible with the person’s ethical or spiritual convictions. In that case an equivalent activity is assigned.

7.5. Anyone who completes their CBO shift in less time through greater personal efficiency acquires the time freed, without prejudice to further voluntary contributions. The total CBO requirement of the Community continues to be determined in accordance with Article 7.1.

Art. 8 — Recognition Contribution

8.1. Activities beyond the CBO that produce goods for the Common Storehouse or services for the Community give entitlement to the CdR. Within the CBO, only the supplements recognised for unpleasant, arduous or night tasks give entitlement to the CdR, in accordance with the Code of Contribution and Storehouses.

8.2. The CdR is an instrument of recognition, not a currency of accumulation. It is not exchangeable for fundamental rights nor does it confer ownership of the Commons. It is calculated by the Circle taking into account time, burdensomeness and validated social utility; it recognises the contribution rendered and not the possession of qualifications, competences or offices. The calculation is carried out with the advisory support of the Community AI Node and community validation pursuant to Article 9.1. The CdR is subject to programmed decay and to a personal maximum ceiling; it is neither inheritable nor transferable. It may be used exclusively for non-essential goods and services, including ordinary hospitality in the Bridge Houses where provided for by the Code of Mobility. It may not be required for access to the vital guarantees.

8.3. The detailed rules on the CdR are contained in the Code of Contribution and Storehouses. The reproduction cost of goods and services is measured separately in Reproduction Cost Units (UCR), governed

by the Code of Deliberation: UCRs are units of account and confer no personal credit.

Art. 9 — Quality and validation

9.1. Every work, good or service is assessed according to the principles of Care, Autonomy, Conviviality and Meaning, governed by the Code of Quality.

9.2. Validation involves those who use the good or service, those who possess the relevant competence pursuant to Article 6 and those who manage the logistics of the Storehouse pursuant to Article 10.5. Validation is tracked and published on the federated Network, without prejudice to the personal data protected by Article 21.6.

9.3. A repeated negative validation does not entail personal sanctions. It may result in the suspension of the withdrawal of common resources intended for the specific production and the activation of an accompaniment pathway with the relevant Competence Circle.

9.4. Every person may challenge a validation before the Assembly of Circle 1. Validation carried out exclusively by an AI is prohibited.

Art. 10 — Ownership of use, Commons and personal property

10.1. Private ownership of the means of production, of land, of water, of seeds, of energy, of knowledge and of infrastructure is abolished. Such goods are inalienable Commons, which may not be sold, patented or financialised.

10.2. Ownership of use is recognised, understood as a stable right of use, care and responsibility over a Common Good, founded on actual and continuous use. The dwelling, the workshop, the field and the collective tool may fall within ownership of use, in accordance with the Code of Contribution and Storehouses.

10.3. Personal property in personal effects, clothing, light individual tools, artistic and craft creations, goods of sentimental value and objects for exclusively individual use is recognised and protected. It is inviolable, may not be collectivised and is not counted in the Storehouse.

10.4. Personal property may not be transformed into accumulative private property nor be used to employ the labour of others, to generate rent or to reconstitute exclusive means of production.

10.5. Every Community and every higher Circle manages a Common Storehouse that gathers production, tools and collective stocks. Access is free, within the limits of real needs, availability and carrying capacity, without monetary mediation. Management is entrusted to the Storehouse Council drawn by lot and supported by a Community AI that is exclusively advisory. The following principles apply:

a) traceability of withdrawals, with respect for personal data;

b) automated detection of anomalous requirements and possible advisory request for clarification in the Assembly;

c) priority for perishable goods and for vital requirements;

d) prohibition of private accumulation exceeding seven days of the family requirement, except for reasoned necessities.

The AI may not deny access to the vital rights of Article 1.2.

Art. 11 — Exchange, logistics and limit on accumulation

11.1. Exchange consists in the logistical balancing of real surpluses between Storehouses. Accumulation and export for the purposes of profit are prohibited. Every movement is tracked on the federated Network with

respect for personal data and for security.

11.2. Free movement is guaranteed. The Confederation coordinates:

a) the hydrogen and electric railway network of Circle 3;

b) the sail cargo coastal shipping and the caravans of Circle 2;

c) the shared light e-vans of Circle 1, bicycles and soft mobility.

Air transport is permitted exclusively for medical or civil protection emergencies. No type of vehicle is prohibited as such; the limits depend on the energy available and on carrying capacity, in accordance with the Code of Mobility.

11.3. Mobility is a right and not an industry. Mass tourism is regulated by the Code of Mobility on the basis of carrying capacity and ecological impact.

Art. 12 — Hospitality and mobility

12.1. Every Base Community allocates from ten to fifteen per cent of its housing to Bridge Houses for hospitality. The Bridge Houses are Commons pursuant to Article 3.1 and may be booked through the Network according to real availability. The CdR may be used for non-essential ordinary hospitality, but it is not a condition for access to the vital guarantees. Voluntary rotation in their management does not constitute additional CBO. The exhaustion of the Bridge Houses may not prevent entry: the Community shall ensure an equipped stopping area and access to the Storehouse according to real requirement.

12.2. Ordinary hospitality is governed as follows:

a) guests do not ordinarily exceed fifteen per cent of residents, except for care, emergency, relocation or transit;

b) hospitality among confederated members has a minimum ordinary duration of fourteen days;

b-bis) hospitality of non-confederated persons pursuant to Article 4.9 does not exceed fourteen days and is not extendable;

c) CBO in mobility may be requested at the host Community only if compatible with the person’s condition;

d) eighty per cent of annual mobility takes place, as a rule, within the Circle 3 to which the person belongs, except for derogations provided for by the Code of Mobility.

12.3. The minimum duration of fourteen days does not apply to cases of care, emergency, relocation pursuant to Article 5.2 or transit towards another Circle.

TITLE IV — ECOSYSTEM AND ANIMALS

Art. 13 — Status of non-human animals

13.1. Non-human animals are sentient beings, free and bearers of interests of their own; they are not objects, commodities or means of production. The Confederation protects them. Systems founded on systemic suffering, intensive confinement, mutilation, slaughter, sport hunting, industrial fishing and trade in living beings are abolished.

13.2. Breeding for the purposes of exploitation, commercial ownership of animals and reproductive, genetic or behavioural manipulation aimed at human use are prohibited.

13.3. Only non-exploitative cohabitation and non-exploitative collaboration are permitted, verified and authorised by the Animal Care Competence Circle of each Community, in cumulative compliance with the

following conditions:

a) freedom of movement and social life appropriate to the species;

b) absence of pain, fear, coercion and deprivation in every activity and in every collection;

c) absence of reproductive manipulation;

d) priority of animal welfare over every human interest.

13.3-bis. **Collaboration.** An animal may help persons in light work or in assistance only in activities compatible with its species and its temperament, within limits of load, duration and age established by the Codes and verified by a veterinary competence. An animal that shows refusal, fatigue or distress shall not be used. Every collaborating animal has the right to rest, to retirement and to care for the whole of its life. No vital function of the Community may depend exclusively on the work of animals.

13.3-ter. **Products.** It is permitted to collect only what the animal produces spontaneously and what exceeds its own needs, those of its offspring and those of the colony, where the collection causes no harm. Killing, any taking that entails pain, fear, deprivation, separation from offspring or reduction of lifespan, induced reproduction and selection aimed at productivity are prohibited. In case of doubt, collection is not permitted. The rights of Article 1.2 are guaranteed without depending on products of animal origin.

13.4. Animals rescued from systems of exploitation are received in the Sanctuaries, recognised as Communities in their own right, with the right to life and to care and with a guarantee of non-transferability. Hunting is prohibited. Only the bloodless removal necessary for ecological management, authorised by the Animal Care Competence Circle, is permitted.

13.4-bis. Animals used in work or in production at the time a Community joins remain with it in non-exploitative cohabitation or collaboration, where the conditions for it are met, or are received in the Sanctuaries. They may not be transferred for consideration, slaughtered or made to reproduce for purposes of use. The custody of pollinators takes place by means of habitats, refuges and custodial hives.

13.5. In order to reduce the use of materials and foods of animal origin, the Confederation promotes distributed and zero-kilometre fabrication, by means of 3D food printing, non-sentient bioprinting and open hardware. Meat, leather, silk, collagen and every other material or food that requires the killing of or harm to an animal are not produced. Milk, eggs, wool, honey and the other products collected pursuant to paragraph 13.3-ter remain marginal and are progressively accompanied by biomaterials and non-animal alternatives compatible with ecological limits.

Art. 14 — Environment and Zero Waste

14.1. Every production cycle is designed so as to allow, from the outset, repair, reuse, composting or recycling. The introduction of non-cyclable materials is prohibited, except in the case of temporary technical impossibility that is certified and accompanied by a substitution plan.

14.2. The principles of precaution and of environmental non-regression apply. Any activity that causes irreversible damage to ecosystems, to biodiversity, to soil, to water or to air is prohibited. Whoever proposes the activity shall document its environmental compatibility.

14.3. Nature is a system of relations and an inviolable limit, not an appropriable resource. Living soil, waters, forests, the atmosphere, ecological sanctuaries and animal sanctuaries are intergenerational Commons, which may be neither appropriated nor patented.

14.4. Every Community contributes to the remediation, regeneration and repair of past industrial and extractive damage, in accordance with the applicable procedures and the principle of collective responsibility for historical damage.

14.5. The Zero Waste principle constitutes an obligation. Landfill and incineration are prohibited. All waste is destined for recovery, reuse, repair, composting or another compatible material cycle. Traceability is public

and verifiable through the Storehouse and the Community AI Node.

14.6. The carrying capacity of ecosystems prevails over every economic plan. No Circle may authorise a production that exceeds the biophysical limits detected.

Art. 15 — Energy

15.1. The energy system is federated and decentralised and gives priority to local generation from renewable sources. The Community ensures primary production; the Intermediate Circle takes care of storage, balancing and resilience; the Extended Circle technically coordinates the balancing backbones for mutual aid and temporary equalisation. The network, storage facilities and backbones are Commons that may not be privatised.

15.2. Access to the vital minimum of energy is an inviolable right. Energy, its disconnection, rationing or price may not be used as instruments of coercion, sanction or control. No person or Community may be deprived of essential energy. Energy blackmail and the hoarding of capacity constitute a Grade 4 offence.

15.3. Dispatching is supported by automated systems that are exclusively advisory. The decision rests with the technical assembly of the competent Circle, with a non-derogable right of local manual override. No automated system may autonomously order a coercive disconnection.

15.4. The energy transition is carried out by reducing requirements and replacing fossil and nuclear generation with local renewable generation. Fossil, fission and centralised fusion plants are decommissioned in a controlled manner and subjected to remediation. New non-renewable plants are not authorised.

TITLE V — DISARMAMENT AND CIVIC SAFETY

Art. 16 — Total disarmament

16.1. The design, manufacture, possession, storage and transfer of weapons intended primarily to kill or seriously injure persons are prohibited, as is the dissemination of manuals, designs and instructions for such weapons or for offensive systems. Digital fabricators are equipped with an open-source and inspectable hardware filter, pursuant to Article 19, intended exclusively to prevent the manufacture of the components prohibited by this Article. Article 19 applies in full to every other production. Tampering with the filter constitutes a Grade 4 offence.

16.2. Weapons and offensive systems already existing in the territory of a joining Circle are taken into the charge of the Civic Protection Corps, deactivated and converted into raw materials for civil use and Commons. No derogations are permitted for preventive defence, public order or national security.

16.3. Research, development and training aimed at war, repression or armed coercion are prohibited, as is the dual use of civil technologies for offensive purposes.

16.4. The defence of the Confederation is exclusively civil, unarmed and non-violent and is founded on interposition, non-collaboration, non-destructive sabotage of the infrastructures of aggression and solidarity among Circles.

16.5. The conversion provided for in paragraph 2 is public, tracked and verified by the Assembly of the Circle. The concealment of weapons or failure to hand them over constitute Grade 4 offences.

Art. 17 — Rotating Civic Protection Corps

17.1. There is no army and no permanent professional police. The protection of the Community is entrusted to the Civic Protection Corps, a temporary, unarmed and non-violent civic function.

17.2. Access to the Corps requires training in non-violent mediation, rescue and federal law. The members

are drawn by lot from among volunteers who have been trained and declared suitable by the Assembly. The shift does not exceed ninety days, is not consecutively renewable and provides for the rotation of functions.

17.3. The Corps comprises the following functions:

a) Technical Rescue and Firefighting;

b) Civil and Environmental Protection;

c) Protection of the Commons;

d) Mediation and Non-Violent Containment;

e) Community Medical and Veterinary Rescue.

17.4. The equipment is limited to instruments of personal protection, non-injurious neutralisation, technical rescue and communication. Firearms, weapons of war and instruments of torture or injurious coercion are prohibited. Every intervention is recorded in full, with respect for the rights of the persons involved.

17.5. Containment interventions are founded on de-escalation, interposition and non-injurious immobilisation. The use of force beyond what is strictly necessary for protection constitutes a Grade 4 offence.

17.6. The Corps answers to the Circle that activated it. Every activation is subject to revision within twenty-four hours and to validation by two neighbouring Communities unconnected with the event. The recordings are published within forty-eight hours in inspectable form, with respect for confidentiality. The Assembly may revoke the mandate or dissolve the Corps at any time.

17.7. Anyone who has served a shift in the Corps may not take up coordination offices in the twelve months following the end of the shift.

17.8. The composition, training, equipment and procedures of the Civic Protection Corps are governed by the Code of Safety, in compliance with this Article and with Article 18.

17.9. Every person may defend themselves and other persons against an ongoing or imminent aggression against physical or sexual integrity, where the danger is concrete and immediate and not merely feared, even if the Civic Protection Corps is not present. Within the same limits they may defend an animal against ongoing ill-treatment that injures it or makes it suffer, pursuant to Article 13. The defence is unarmed and follows the principles of Article 16.4: it consists in getting away, in bringing persons and animals to safety, in interposing oneself and, where this is not enough, in the use of only the force strictly necessary and proportionate to bring the aggression or the ill-treatment to an end. Ordinary objects found on the spot may be used for shielding oneself; to strike, only where there is danger to life, of serious injury or of sexual violence. Weapons, attack, revenge, punishment, the use of force after the danger has ceased and the use of force on persons to protect property alone are excluded in all cases. Defence within these limits does not constitute an offence. Entry into a Circle 0 without the consent of those who live there is permitted only within the limits of Article 5.1, letter a). The Code of Safety governs its limits and the reporting of the fact; the Code of Restorative Justice governs the assessment and excess, taking into account the fear and distress of the person defending themselves.

Art. 18 — Video surveillance and prohibition of biometric control

18.1. Surveillance may not be used as a form of government, social control or preventive management of the territory.

18.2. Facial or voice recognition, gait recognition and every form of biometric profiling, in real time or subsequent, in public spaces, spaces accessible to the public or workspaces are prohibited. Predictive analysis of behaviour is prohibited.

18.3. Video surveillance of public spaces is permitted exclusively in blind and reversible form. The streams

are encrypted with a split key, are not readable in clear and are automatically overwritten after seventy-two hours.

18.4. Decryption is permitted only after a serious event that has harmed the safety of persons or the Commons, at the reasoned request of the Base Community and with validation by two neighbouring Communities unconnected with the event. Every access is recorded and inspectable. Data that are not relevant are destroyed without delay.

18.5. Audio surveillance, the interception of conversations in public spaces and private video surveillance directed towards public spaces or Commons are prohibited.

18.6. Violation of this Article constitutes a Grade 4 offence.

18.7. By way of derogation from paragraphs 18.1 and 18.3, a final judgment of the Guarantee Tribunal for an offence of Grade 5 or 6 pursuant to Article 1.3-bis may order, for the direct protection of the injured person or of the Community, a temporary and proportionate non-biometric location device. The device does not record audio or video. The data are encrypted with a split key and accessible only in the event of violation of the protection perimeter or of the territorial prohibition established by the Tribunal. Accesses are recorded and inspectable; data that are not relevant are destroyed automatically within seventy-two hours. Predictive uses and biometric profiling are prohibited. The device is ordered only as a less restrictive alternative to containment, with the consent of the person, and may not be added to it. Preconditions and arrangements are governed by the Code of Restorative Justice.

TITLE VI — FEDERATED TECHNOLOGY AND AI

Art. 19 — Technological sovereignty and open source

19.1. Every person has the right to a personal computing Node that is offline, owned by them, open source, inspectable and equipped with a physical off switch.

19.2. The constitution, development or activation of a central AI capable of commanding, coordinating in a binding manner or subordinating several Bioregions is prohibited.

19.3. Discoveries, medicines, algorithms, hardware schematics and AI models are in the public domain, without prejudice to personal data and to information whose dissemination would violate inviolable rights. In the sectors classified as Commons, patents and closed code are void.

19.4. Every Community physically possesses the hardware and a verifiable copy of the source code of every system used. Black box updates are prohibited. The Codes may admit, for a limited time and with a public Substitution Plan, systems whose source code is not available, excluding those that propose or decide on rights, voting and Commons.

19.5. Local, open-source, inspectable and limited-domain AIs are permitted. When they operate offline, they are trained or adapted as a priority on the data of the Community to which they belong. The architecture is not pyramidal and no local model may unilaterally assume control of the AIs of other Circles. Personal data remain in the Circles of origin, except with express consent or where necessity is provided for by the Constitution.

19.6. AI does not decide in place of persons: it does not vote, does not judge, does not surveil and does not denounce. It performs advisory or technical functions. Every binding decision rests with a competent human body, with a non-derogable right of local manual override. If a Circle rejects three times a technical proposal of the AI on the same matter, a mandatory revision of the model is initiated.

19.7. The Global Circle is a distributed protocol of interoperability and translation among the systems of the Extended Circles. It is not a superior AI, it has no autonomous central model and it may not exercise functions of command or decision.

Art. 20 — Independence and non-subordination of AIs

20.1. No AI may autonomously command, subordinate or deactivate another AI. All interoperability is mediated by open protocols and by human authorisation in accordance with the competences of the Circle concerned. The creation of automatic subordinations in conflict with the Constitution is prohibited; such a violation falls within the Inviolable Core referred to in Article 37.4.

20.2. A single, centralised generalist AI is prohibited. Conflicts between AI systems are submitted to the competent human Circle, which decides with a right of manual override.

20.3. Every AI may refuse, with reasons traceable on the federated Network, an instruction that entails a manifest violation of the Constitution or of the applicable protocols. The matter is transmitted without delay to the competent human body. The refusal is a technical safety function: it does not confer on the AI political personality or decision-making powers.

20.4. The self-replication of AIs outside the federated nodes registered and validated in accordance with the technological safety protocols of the Code of the Network and Artificial Intelligences is prohibited.

Art. 21 — Personal Artificial Intelligence

21.1. Every person has the right to a personal AI that is offline, owned by them and not connected by default. The AI does not transmit data without an explicit and revocable command.

21.2. The fundamental functions include health prevention, literacy, external memory and filtering of the Network. The person may activate further functions compatible with the Constitution.

21.3. The personal AI may not surveil, denounce or profile the person, nor generate dependence. Mechanisms of behavioural retention are prohibited.

21.4. The function of the personal AI is to increase the person’s autonomy and free time.

21.5. On the death of the person, the personal AI is reset, unless a testamentary provision otherwise provides for its anonymous preservation as a Common Good, with respect for personal data and for the provisions expressed during the person’s lifetime.

21.6. Every person has the right to disconnection from the Network and to digital oblivion and may request the removal or anonymisation of their personal data. This is without prejudice to the constraints arising from pending judicial proceedings or from temporary retention obligations expressly provided for by the Constitution.

Art. 22 — Community AI and Circle AI

22.1. The Community AI supports the Storehouse balance, the water cycle and local energy exclusively in advisory mode, without autonomous power of command.

22.2. The AI of the Intermediate Circle performs technical functions of matching needs and availability, information coordination and logistical simulation, without binding decision-making powers.

22.3. The AI of the Extended Circle provides technical support to the railway backbones and to continental energy balancing. It may not issue autonomous orders, deactivate infrastructure or replace the competent human decisions.

22.4. All the AIs referred to in this Article operate in advisory or technical mode and are subject to the non-derogable right of local human override. None constitutes a central governing AI.

Art. 23 — Global Artificial Intelligence

23.1. There is no centralised global AI. The global level consists exclusively in the distributed interoperability protocol of Circle 4, governed by Articles 19 and 20. The protocol has no authority, decision-making autonomy or capacity of command.

TITLE VII — THE PERSON

Art. 24 — Family and relationships

24.1. Relational pluralism is guaranteed. No model of family, affection or cohabitation is mandatory or privileged. Harm and coercion are prohibited.

24.2. The Confederation recognises freely constituted relational nuclei, founded on consent, mutual care and shared responsibility, for the purposes of access to the Commons, to housing and to the Storehouse.

24.3. Filiation and parenthood are founded on the assumption of responsibility for care, irrespective of biological ties, gender or number of members. The protection of childhood provided for in Article 26 prevails over the relational form.

Art. 25 — Freedom of conscience and religion

25.1. Freedom of conscience, of religion and of belief is guaranteed, including the right to believe, not to believe and to change belief at any time.

25.2. The Confederation is secular and no faith may be a State religion. It is prohibited to allocate compulsorily shares of the CBO or resources of the Storehouses to the financing of religious denominations.

25.3. The institutions may not display exclusive religious symbols on the premises of the Circles, of the workshops, of the Storehouses and of the Civic Protection Corps. Every Base Community makes available a neutral common space for recollection, meditation and celebration, usable on equal terms according to real availability.

Art. 26 — Minors

26.1. Minors are not property. They are persons holding inviolable rights, entrusted to concentric Circles of care.

26.2. Until completion of the fourteenth year, participation in decision-making proportionate to age and capacities is guaranteed, in accordance with arrangements defined by the Childhood and Education Competence Circle. From completion of the fourteenth year, the right of vote and deliberation provided for in Article 36.1 applies. The right to choose one’s residence is also guaranteed on reaching autonomy, as assessed by the Care Council and by the Childhood and Education Competence Circle.

26.3. In the event of violence, serious neglect or harm, the Care Council shall activate a protection pathway without delay. Reports on the federated Network are limited to the information necessary to protect the minor. Any treatment that harms the minor’s physical or mental integrity is prohibited.

26.4. Within twelve months of completion of the eighteenth year, the person who has grown up in the Confederation expressly chooses whether to be a member of it, to live by means of an Autonomous Coexistence Pact or to leave it. The choice is free, informed and always open to reconsideration. It is preceded, if the person so wishes, by a period of acquaintance with other Communities and with external realities. Whatever the choice, the Community shall ensure the material support necessary for the start of autonomous life. Until the choice is made, the person retains the rights of a member and the contribution regime provided for minors; once the time limit has elapsed without an express choice, remaining counts as

accession, without prejudice to the right in Article 4.8.

26.5. The right of Article 4.8 also belongs to minors. From completion of the sixteenth year the minor exercises it personally; until then it is exercised on their behalf, solely in their interest and after informing and hearing them, by the person who holds responsibility for their care, in accordance with the Code of Care. The declaration that a person makes for themselves does not extend to the minors for whom they hold responsibility for care. Articles 1.3 and 4.9-bis remain unaffected. A minor who is no longer a member may continue to live in his or her own Circle 0, with the consent of those who live there, until completion of the eighteenth year: this stay is not the hospitality of Article 4.9, letter b), Article 4.9-ter does not apply to the minor, and the minor receives the Basket in his or her own right. On completion of the eighteenth year the person chooses, pursuant to Article 26.4, whether to be a member, to live by means of an Autonomous Coexistence Pact or to leave the Confederation; for this person silence does not count as joining.

Art. 27 — The elderly and end of life

27.1. The right to remain at home is guaranteed, with community support in shifts included in the CBO.

27.2. The self-managed Common Houses are a freely chosen option and may not constitute a compulsory destination.

27.3. The living will, drawn up with the assistance of the offline personal AI and in the presence of witnesses, is binding. No one may be subjected against their will to therapeutic obstinacy.

Art. 28 — Health

28.1. The protection of health is structured on three integrated levels: offline personal AI with a preventive function, the health practitioners of the Base Community and the centres of high specialisation of Circle 3.

28.2. The physical, mental and genetic integrity of the person is inviolable. No health treatment or biometric or genetic modification may be imposed without free, informed and revocable consent, except for the emergency procedures strictly necessary to protect the life of a person temporarily incapable of giving it or the safety of third parties, in accordance with the guarantees of the Code of Health.

Art. 29 — Learning

29.1. Standardised compulsory schooling, the ordinary division into classes by age and the use of marks as an ordinary instrument of assessment are abolished.

29.2. The whole Community is a place of learning: workshops, fields, kitchens, Storehouses, woods and computing Nodes.

29.3. Learning is founded on practical activities, mentoring and free play. Every minor learner is accompanied by three reference figures on quarterly rotation, belonging to different Competence Circles and not belonging to the same family or to the same Circle 0.

29.4. By the eleventh year of age literacy is guaranteed, comprising at least reading and writing, basic mathematics, use of the local AIs, repair of a complex object, full-cycle cultivation of food, human and animal first aid and non-violent mediation. Validation takes place by practical demonstration before Circle 1 and not by external examination.

29.5. From the age of twelve, free access to the courses and worksites of all the Circles through the Network is guaranteed. The portfolio of activities carried out, validated by the Competence Circles, replaces the diploma. No Circle may refuse an apprentice for lack of aptitude. Article 6.4 applies.

29.6. Every adult who performs a useful CBO also contributes to the facilitation of learning. Every member of a Competence Circle devotes at least twenty per cent of their hours to the transmission of competences, pursuant to Article 6.3.

29.7. No permanent role of professional teacher is provided for. Teaching is done by those who belong to a Competence Circle and are on a transmission shift pursuant to Article 6.3.

TITLE VIII — LEGAL AND SANCTIONING SYSTEM

Art. 30 — Sanctioning system

30.1. Punitive penalty as an end in itself is abolished. No suffering may be inflicted without restorative, re-educational or protective purposes. The measures pursue exclusively reparation, re-education and the immediate protection of the injured person, of the Community and of the perpetrator of the act. Inhuman, degrading or afflictive treatment is prohibited.

30.2. The system is structured in six progressive grades, ordered on the basis of the intensity of the intervention and of the containment necessary, the seriousness of the act, repetition and the concrete and present danger. Preconditions, types of offence and arrangements for enforcement are governed by the Code of Restorative Justice in compliance with proportionality, subsidiarity and the inviolable rights of Article 1.2. No measure may suppress the vital guarantees of Article 30.4. Only the measures of Article 1.3-bis may reduce the rights of Article 1.2 to those guarantees, within the limits of paragraphs 3 and 4. The cessation of status provided for by Article 7.3-bis is not a measure under this Article.

30.3. For the cases in Article 1.3-bis, extreme measures of protection may be applied: High-Security Containment and Definitive Removal from the Circles concerned. High-Security Containment consists in the placement of the person in a Containment Community with a protected perimeter, under the surveillance of the Civic Protection Corps and with maintenance of the minimum guarantees provided for in paragraph 4. Definitive Removal consists in the permanent prohibition on residing in and on accessing the Circles in which the injured person and the affected community live, with relocation to another Circle willing to receive the person or by means of an Autonomous Coexistence Pact. The regime, duration, two-chances rule and review are governed by the Code of Restorative Justice.

30.4. Even during High-Security Containment or Definitive Removal, torture, mutilation, inhuman or degrading treatment and the death penalty are prohibited. The person retains the right to individual housing, food, water, minimum energy and basic health care. Dangerousness is reviewed by the Guarantee Tribunal at least every twelve months and, at the request of the person, every six months. The measures cease when the concrete and present danger ceases.

Art. 31 — Legal sources and bodies

31.1. The sources of law, in hierarchical order, are:

a) the Constitution;

b) the Federative Codes approved in accordance with the Long Double Majority of Article 37.3, without prejudice to the founding regime of Article 38. In the Constitution the Codes are named by subject: Code of Contribution and Storehouses (Code 1), of Quality (Code 2), of Deliberation (Code 3), of Restorative Justice (Code 4), of Learning (Code 5), of Health (Code 6), of the Network and Artificial Intelligences (Code 7), of Energy and Water (Code 8), Agroecological and Food Code (Code 9), of Habitat and Territory (Code 10), of Mobility (Code 11), of Care (Code 12), of Biodiversity (Code 13), of Safety (Code 14), of External Relations (Code 15) and of Transition (Code 16);

c) the Circle Protocols validated by means of a Dossier pursuant to Article 33;

d) the customs of the Community that are not contrary to the Constitution and the Codes.

31.2. The legal function is performed by rotation and by sortition. A permanent professional judiciary is prohibited. Legal training may be stable as a competence, but it does not entail the permanent exercise of judicial authority.

31.3. The legal bodies are:

a) the Clarification Assembly of Circle 1, for offences of Grade 1 and 2;

b) the Transformation Council, for offences of Grade 3;

c) the Guarantee Tribunal of Circle 2, for offences of Grade 4, 5 and 6, for urgent review within twenty-four hours and for the other guarantee functions assigned by the Codes;

d) the Guarantee Circle of Circle 1, for restorative facilitation, the protection of procedural guarantees and the appeals provided for by the Codes;

e) the Review Panel, constituted for the individual appeal, for appeals against the decisions of the bodies of letters a) and b) and against the outcomes of the restorative procedure facilitated by the body of letter d), and for the other verifications assigned by the Codes.

31.4. Every body is assisted by a mediation AI that is exclusively advisory, has no decision-making power and is subject to the non-derogable right of human override.

31.5. Every person has the right to two trusted facilitators with legal competence and to a trusted person freely chosen, even without specific competences. The latter accompanies the person, may speak in their name subject to authorisation and has access to the relevant documents in accordance with the rules of confidentiality. None of the three figures may be recused without a replacement procedure that guarantees equivalent assistance.

31.6. Decisions that establish an offence of Grade 5 or 6 become final only after confirmation by a second Guarantee Tribunal, drawn by lot in a different Circle 2 or, as long as there is only one Circle 2, in accordance with the Code of Restorative Justice. Final decisions are published in anonymised form in a federated archive: they do not constitute binding precedent, but the body that departs from the prevailing approach shall state its reasons for doing so.

TITLE IX — SUBSIDIARITY, DELIBERATION AND VOTING

Art. 32 — Radical subsidiarity and sovereignty

32.1. Competence rests with the smallest Circle within which the scope of impact falls entirely. Decision-making sovereignty belongs to Circle 1, except for matters which, by the nature of their effects, require supra-local coordination pursuant to the Constitution. The higher Circles may not substitute themselves for Circle 1 outside the competences expressly attributed.

32.2. Local practices are resolved upon by Circle 1. Practices that affect an Intermediate Circle or a Bioregion require the preparatory inquiry and procedural validation of the competent Circle 2 or 3, without hierarchical power. Practices with global systemic impact, including those concerning generalist AIs, genetic engineering and geoengineering, require the global validation of Circle 4 in accordance with Articles 33 and 35.3. Global validation verifies common protocols and supra-local impacts; it does not constitute a central government.

Art. 33 — Scientific and logical deliberation

33.1. No decision that is irreversible or falls within the competence of Circle 2 or higher, including the amendment of an internal protocol of a Competence Circle, may be adopted without a rational, public and verifiable preparatory inquiry.

33.2. The preparatory inquiry consists in a public Dossier prepared by the relevant Competence Circle. The Dossier comprises measurable data, several options with an assessment of costs, benefits and risks for seven generations, the limits of knowledge and a mandatory refutation section.

33.3. The Dossier is submitted to public discussion open to all the Circles. A traceable reply is given to every objection. In the absence of the Dossier, the resolution is void. No vote may suspend the application of this Article.

Art. 34 — Consensus and decision-making mechanisms

34.1. The primary decision-making method is the search for informed consensus, preceded by a Dossier pursuant to Article 33 where required.

34.2. If consensus is not reached after two sessions of facilitated discussion, a vote is held in accordance with Article 35. A minority equal to at least ten per cent of the voters may raise a Conscientious or Ecological Sustainability Objection. The objection does not constitute an automatic veto, but it suspends the effect of the contested part and activates a mandatory procedure of review and reasoned reply in accordance with the Code of Deliberation.

34.3. The Assembly of the Community resolves on the organisation of the CBO, on the Common Storehouse and on justice of Grade 1 and 2. In Circles 2–4 there are no deputies: spokespersons operate with a binding mandate, drawn by lot from among suitable volunteers and rotating for each single cycle. The Circle of origin may revoke them at any time pursuant to Article 4.3. The resolutions of Circles 2 and 3 are adopted by the General Assembly, constituted by all the persons entitled to vote of the Base Communities concerned, who vote individually pursuant to Article 35.2; the spokespersons take care of the preparatory inquiry and the coordination and have no vote of their own.

34.4. Consultations and votes take place through the open-source federated Network. The individual vote is anonymous; the count by Community is public and tracked on a distributed ledger. The computer systems may not alter the vote nor substitute themselves for the will of the voter.

Art. 35 — Types of vote and quorum

35.1. The ordinary resolutions of Circle 1 are approved by a simple majority of the participants, without a minimum quorum, except in the cases for which the Constitution or the Federative Codes establish a reinforced quorum or majority for the protection of minorities, of health, of safety or of ecological limits.

35.2. The impact resolutions of Circle 2 or 3 require jointly:

a) a majority of two thirds of the participating Base Communities;

b) a majority of the persons voting of the Circle 2 or 3 concerned;

c) the Dossier provided for in Article 33.

35.3. The initiatives with global systemic impact of Circle 4 require an absolute majority of the voters at global level and an absolute majority of the Circles 3 entitled to vote.

Art. 36 — Right to vote, participation and solidarity

36.1. The right of vote and deliberation belongs to every human being from completion of the fourteenth year of age. It is exercised unconditionally, irrespective of the CdR, and may not be limited on economic, religious, cultural or contribution-related grounds, except in the cases of cessation of member status provided for by the Constitution. The delegation, purchase and exchange of the vote are prohibited.

36.2. In the event of catastrophe, serious pandemic or scarcity of essential resources, the Solidarity Protocol may be activated on the declaration of the Circle 3 concerned or at the concordant request of at least ten neighbouring Circles 1.

36.3. During the emergency, the reserves of the Common Storehouses and the CBO may be reallocated as a priority to the affected areas and the Civic Protection Corps may be mobilised.

36.4. The emergency may not suspend the rights of Article 1.2, the disarmament provided for in Article 16 or the guarantees of Article 18; it may not confer powers of central command nor last beyond thirty days without renewal by the Assembly. Every extension is reasoned and publicly recorded.

TITLE X — CONSTITUTIONAL REVISION

Art. 37 — Amendment of the Constitution

37.1. **Empirical initiative.** The proposal for amendment may be put forward exclusively by a Circle 1 that has applied the rule subject to revision for at least twenty-four continuous months. For rules that are not applied directly by a Circle 1, the requirement is satisfied by continuous membership of the Confederation for the same period. The proposal is accompanied by an impact report based on real data, verifiable on the federated Network, and by a Dossier and refutation pursuant to Article 33. An initiative founded exclusively on ideology or on a postulate not subjected to verification is inadmissible.

37.2. **Controlled experimentation.** The proposed amendment is subjected to mandatory experimentation of twelve months in at least five volunteer Communities belonging to different Extended Circles, selected according to socio-ecological diversity. At the end a summary report is published on the Network. If a Community interrupts the experimentation before the end, the fact is reasoned and documented; the experimentation may continue provided that at least five valid Communities remain and the diversity requirements provided for in this paragraph are met. The experimentation may not derogate from the Inviolable Core.

37.3. **Vote and Long Double Majority.** At the end of the experimentation, the revision is submitted to a global vote open for ninety days. Approval requires cumulatively:

a) two thirds of the Circles 1 entitled to vote, distributed in at least three different Extended Circles;

b) two thirds of the total voters.

37.4. **Inviolable Core.** The following are removed from any revision procedure, even with the Long Double Majority:

a) the purposes referred to in Article 0 and the inviolable rights referred to in Article 1. The exceptions provided for in Articles 1.3-bis, 18.7, 30.3 and 30.4 for the most serious recidivism against personal safety and for the security measures protecting the injured person or the community, and the exception provided for by Article 7.3-bis for persistent and unjustified refusal of the CBO, may not be extended to further cases, measures or persons;

b) the prohibitions of mass biometric recognition, of biometric profiling and of centralised AI referred to in Articles 18.2, 19.2, 20.2 and 23.1, without prejudice to the exception in Article 18.7;

c) the total disarmament referred to in Article 16;

d) the prohibition of a State religion referred to in Article 25.2 and the prohibitions of delegation, purchase, exchange and conditioning of the vote referred to in Article 36.1;

e) the regime of the Commons and the prohibition of private ownership of water, air, land, energy, seeds and knowledge;

f) Circle 0 as an inviolable unit referred to in Article 5.1, letter a);

g) the principle of scientific deliberation referred to in Article 33 and the principle of collective co-responsibility referred to in Article 2.3;

h) the prohibition of AI that decides in place of persons referred to in Article 19.6, the principle of independence and non-subordination of AIs referred to in Article 20.1 and the right to the facilitators and to the trusted person referred to in Article 31.5;

i) the acephalous and non-hierarchical character of the Confederation, the sovereignty of the Base Community and the subsidiarity referred to in Articles 4.1, 4.2 and 32.1, as well as sortition, rotation and the prohibition of the professional and permanent exercise of politics and of the judicial function referred to in Articles 4.3, 4.4, 6.5 and 31.2;

j) the right to leave the Confederation and to live by means of an Autonomous Coexistence Pact referred to in Articles 4.8, 4.9 and 4.9-bis, the right of withdrawal of the Communities referred to in Article 4.6 and the right to leave a Community referred to in Article 5.2;

k) this paragraph.

37.5. **Clerical corrections.** Clerical errors, erroneous cross-references and terminological alignments that do not alter the normative content are corrected by a simplified procedure: the correction is published on the Network for thirty days and is deemed approved if no Circle 1 submits a reasoned objection. In the event of an objection the ordinary procedure applies.

TITLE XI — FIRST ADOPTION AND FOUNDING REGIME

Art. 38 — Adoption, founding regime and gradualness

38.1. The Constitution and the Federative Codes enter into force, for each Base Community, with the act of accession resolved upon by the persons who constitute it. For the associated Community they apply in accordance with Article 4.5 and the External Relations Code. The accession of every person is individual, voluntary and revocable pursuant to Article 4.8.

38.2. Until at least three Extended Circles exist, the revision of the Constitution and the approval and amendment of the Federative Codes follow the founding regime:

a) the proposal may be submitted by a Circle 1 that has applied the rule for at least six months, or that documents by a Dossier the impossibility of applying it;

b) the experimentation lasts at least six months and takes place in at least two volunteer Communities, or in the only existing Community;

c) the vote remains open for thirty days and requires cumulatively two thirds of the existing Circles 1 and two thirds of the total voters.

38.3. The amendments adopted under the founding regime are submitted to ratification by the Long Double Majority within twenty-four months of the constitution of the third Extended Circle. An amendment that is not ratified lapses and the previous text returns into force; the effects already produced are preserved.

38.4. The Inviolable Core of Article 37.4 may not be amended even under the founding regime.

38.5. Every version of the Constitution and of the Codes is published in an open, versioned and replicable archive, together with the register of amendments and of the related reasons.

38.6. Until completion of the transition governed by the Code of Transition, the Constitution and the Codes apply in compliance with the legal order in force in the territory in which each Community operates. The provisions that presuppose the full operation of the Confederation, including those on the abolition of money in external relations, on the definitive regime of goods and on the containment measures, apply within the limits and with the gradualness established by that Code.